

ATTORNEY OR PARTY WITHOUT ATTORNEY (Name, State, Bar number, and address): Chris D. Mandarich (220693), Teona Pipia (343337), Hayk Stambultsyan (320973), Martin Weingarten (SB201906) Mandarich Law Group LLP PO Box 109032 Chicago, IL 60610 TELEPHONE NO.: 877-414-0130 FAX NO. (Optional): E-MAIL ADDRESS (Optional): chrism@mandarichlaw.com ATTORNEY FOR (Name): LVNV Funding LLC	FOR COURT USE ONLY Electronically FILED by Superior Court of California, County of Los Angeles 1/18/2024 10:20 AM David W. Slayton, Executive Officer/Clerk of Court, By J. Riveros, Deputy Clerk
SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES STREET ADDRESS: 9425 Penfield Avenue, Room 1200 MAILING ADDRESS: 9425 Penfield Avenue, Room 1200 CITY AND ZIP CODE: Chatsworth 91311 BRANCH NAME: North Valley District, Chatsworth Courthouse	
PLAINTIFF/PETITIONER: LVNV Funding LLC	CASE NUMBER: 24CHLC00255
DEFENDANT/RESPONDENT: Peter Stincer an Individual	
PROOF OF SERVICE OF SUMMONS	Ref. No. or File No.: 4756560

1. At the time of service I was at least 18 years of age and not a party to this action.
2. I served copies of (specify documents):
Summons; Complaint; Civil Case Cover Sheet; Civil Case Cover Sheet Addendum and Statement of Location; Notice of Case Assignment; Order to Show Cause Hearing/Trial Date; Declaration of Venue; ADR INFO PACKAGE; General Order; First Amended General Order; VOLUNTARY EFFICIENT LITIGATION STIPULATIONS
3. a. Party served (specify name of party as shown on documents served):
Peter Stincer an Individual
- b. ☐ Person (other than the party in item 3a) served on behalf of an entity or as an authorized agent (and not a person under item 5b whom substituted service was made) (specify name and relationship to the party named in item 3a):
4. Address where the party was served:
12814 Newton St, Sylmar, CA 91342-4923
5. I served the party (check proper box)
 - a. ☐ **by personal service.** I personally delivered the documents listed in item 2 to the party or person authorized to receive service of process for the party (1) on (date): at (time):
 - b. ☒ **by substituted service.** On (date): **01/17/2024** at (time): **7:55 PM** I left the documents listed in item 2 with or in the presence of (name and title or relationship to person indicated in item 3):
John Doe, I delivered the documents to an individual who refused to give their name who identified themselves as the co-resident. The individual tried to refuse service by refusing to take documents and did not state reason for refusal (documents left, seen by subject). The individual appeared to be a gray-haired Hispanic male contact 45-55 years of age, 5'4"-5'6" tall and weighing 160-180 lbs with a tattoo. Another resident (female) came out and was hostile about me leaving the documents. Accusing me of doing my job incorrectly because I didn't serve the subject, I served someone else. I explained it was a subserve on the resident and she started calling me names, cursing and accusing me of being lazy and not doing my job correctly.
 - (1) ☐ **(business)** a person at least 18 years of age apparently in charge at the office or usual place of business of the person to be served. I informed him or her of the general nature of the papers.
 - (2) ☒ **(home)** a competent member of the household (at least 18 years of age) at the dwelling house or usual place of abode of the party. I informed him or her of the general nature of the papers.

BY FAX



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- (3) ☐ **(physical address unknown)** a person at least 18 years of age apparently in charge at the usual mailing address of the person to be served, other than a United States Postal Service post office box. I informed him or her of the general nature of the papers.
- (4) ☒ I thereafter caused to be mailed (by first class, postage prepaid) copies of the documents to the person to be served at the place where the copies were left (Code Civ. Proc § 415.20). Documents were mailed on (date): from (city): or ☒ a declaration of mailing is attached.
- (5) ☒ I attach a **declaration of diligence** stating actions taken first to attempt personal service.

- c. ☐ **by mail and acknowledgement of receipt of service.** I mailed the documents listed in item 2 to the party, to the address shown in item 4, by first-class mail, postage prepaid,
- (1) on (date): (2) from (city):
- (3) ☐ with two copies of the *Notice and Acknowledgement of Receipt* and a postage-paid return envelope addressed to me. (*Attach completed Notice and Acknowledgement of Receipt.*) (Code Civ. Proc., § 415.30)
- (4) ☐ to an address outside California with return receipt requested. (Code Civ. Proc., § 415.40)
- d. ☐ **by other means** (*specify means of service and authorizing code section*):

☐ Additional page describing service is attached.

6. The "Notice to the Person Served" (on the summons) was completed as follows:

- a. ☒ as an individual defendant.
- b. ☐ as the person sued under the fictitious name of (*specify*):
- c. ☐ as occupant.
- d. ☐ On behalf of (*specify*)

under the following Code of Civil Procedure section:

- | | |
|---|---|
| ☐ 416.10 (corporation) | ☐ 415.95 (business organization, form unknown) |
| ☐ 416.20 (defunct corporation) | ☐ 416.60 (minor) |
| ☐ 416.30 (joint stock company/association) | ☐ 416.70 (ward or conservatee) |
| ☐ 416.40 (association or partnership) | ☐ 416.90 (authorized person) |
| ☐ 416.50 (public entity) | ☐ 415.46 (occupant) |
| | ☐ other: |

7. **Person who served papers**

- a. Name: **Melissa Banos**
- b. Address: **9300 Paso Robles Ave., Northridge, CA 91325**
- c. Telephone number: **818-631-1257**
- d. The fee for service was: **\$ 98.50**
- e. I am:

- (1) ☐ not a registered California process server.
- (2) ☐ exempt from registration under Business and Professions Code section 22350(b).
- (3) ☒ registered California process server:

BY FAX



(i) ☐ owner ☐ employee ☒ independent contractor. For: **ABC Legal Services, LLC**

(ii) ☒ Registration No.: **2019294121** Registration #: **6779**

(iii) ☒ County: **Los Angeles County** County: **Los Angeles**

8. ☒ **I declare** under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

or

9. ☐ **I am a California sheriff or marshal and I certify** that the foregoing is true and correct.

Date: 01/17/2024

Melissa Banos

(NAME OF PERSON WHO SERVED PAPERS/SHERIFF OR MARSHAL)



(SIGNATURE)



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PLAINTIFF/PETITIONER: LVNV Funding LLC	CASE NUMBER:
DEFENDANT/RESPONDENT: Peter Stincer an Individual	24CHLC00255
DECLARATION OF REASONABLE DILIGENCE	Ref. No. or File No.: 4756560

Party to Serve:
Peter Stincer an Individual

Documents:

Summons; Complaint; Civil Case Cover Sheet; Civil Case Cover Sheet Addendum and Statement of Location; Notice of Case Assignment; Order to Show Cause Hearing/Trial Date; Declaration of Venue; ADR INFO PACKAGE; General Order; First Amended General Order; VOLUNTARY EFFICIENT LITIGATION STIPULATIONS

BY FAX

Service Address:

12814 Newton St, Sylmar, CA 91342-4923

I declare the following attempts were made to effect service by personal delivery:

1/10/2024 9:45 AM: There was no answer at the address.

1/14/2024 10:43 AM: There was no answer at the address.

1/15/2024 1:51 PM: There was no answer at the address.

Person who performed diligence:

Melissa Banos

9300 Paso Robles Ave., Northridge, CA 91325

818-631-1257

I am a registered California process server

Registration No.: 2019294121

County: Los Angeles County

I declare under penalty of perjury under the laws of the State of California the foregoing is true and correct.

Date: 01/17/2024

Melissa Banos

(NAME OF PERSON WHO PERFORMED DILIGENCE)



(SIGNATURE)



